



Protection granted. Then the wait.

When someone is granted asylum in France, their administrative journey is only just beginning. This website shows, step by step, what refugees and beneficiaries of subsidiary protection have to accomplish – and the gap between the time actually observed and the time set by law.

Data verified in June 2026 – OFPRA, Conseil d'État, Défenseur des droits, UNHCR, Légifrance – supplemented by field feedback.

— THE FIGURES

France and refugees, in brief

A few benchmarks to put into perspective a reality that is often poorly understood by the general public.

≈ **663,000**

people under OFPRA protection

end of 2024 – refugees, subsidiary protection, stateless persons

153,596

asylum applications registered in 2024

record level (+7.7% in one year)

54,430

protections granted in 2024

i.e. ≈ 39% of OFPRA decisions

3rd

host country in the European Union

by number of refugees – but 21st relative to population

A reality that is often poorly understood

Worldwide, around three out of four refugees are hosted by low- or middle-income countries, most often neighbours of conflict zones. Out of nearly 43 million refugees worldwide, France hosts only a modest share. And once protection is granted, another journey begins: that of the procedures and the wait.

— THE PROCESS, STEP BY STEP

Four situations, four journeys

For each situation: the steps to be taken, the time actually observed (🕒 in orange) and the time the law requires of the administration (⚖️ in blue – or « not set » when the law sets none).



Reconstituting civil status after a favourable decision

A protected person can no longer turn to the authorities of their country of origin. It is OFPRA that must reconstitute their civil status – and without these documents, almost nothing is possible.



Favourable decision
by OFPRA or the CNDA



Documents from the
country of origin can
no longer be used



Reconstitution
request submitted to
OFPRA



ACTUAL TIME
≈ 9 months
(from 8 months to a
year and a half)



TIME SET BY
LAW

Not set by law





Civil status
documents issued
(with the force of
authentic records)



Permanent permit,
marriage, bank
account... finally
possible

THE SITUATION

A protected person can no longer turn to the authorities of their country of origin. It is the OFPRA which, through its protection division, **establishes, reconstitutes and maintains their civil status** and issues the documents serving as records (birth certificate, marriage certificate, family record book) – documents which have the value of authentic instruments. Deadlines have risen sharply: from 141 days in 2017 to 240 days in 2021, then a backlog exceeding 31,500 applications at the end of 2022. The situation has improved since the end of 2023, but the average deadline remained 11.7 months in 2023, 10.8 months in 2024 and 9.1 months in 2025, with still 59,860 files pending at the end of 2024. **No deadline is legally enforceable against the OFPRA** to carry out this task.

59,860

civil status files pending at the OFPRA on 31 December 2024 (the backlog exceeded 31,500 at the end of 2022)

9.1 months

average deadline for establishing records in 2025 (275 days), compared with 10.8 months in 2024 and 11.7 months in 2023

—
legal deadline currently enforceable against the OFPRA to establish civil status records

THE PROBLEM

As long as the OFPRA has not established the records, the beneficiary lives in a grey zone: **the prefecture cannot issue the final residence permit as long as the civil status record has not been communicated to it**; to this are added the opening of a full-service bank account, the signing of a lease, marriage, the family record book, certain benefits. The Conseil d'État (30 January 2025) held that the certificate of extension of processing and the status were sufficient to exercise most rights; in practice, this certificate often remains poorly known or poorly accepted at counters (banks, employers, landlords, CAF, France Travail, town halls), and the refugee has no enforceable deadline or effective channel of petition.

OUR PROPOSALS

Proposal 1

Enter an enforceable legal deadline of 4 months

Supplement Article L121-9 of the CESEDA with a maximum deadline of **four months** (six months for files requiring a supplementary investigation or the legalisation of foreign records) between the complete application and the issuance of the record by the OFPRA — a clear reference standard, currently non-existent.

Proposal 2

Attach to the exceedance a penalty payment and a simple channel of petition

Provide by decree for petitioning the judge for an order to issue subject to a penalty payment (art. L911-1 et seq. CJA); create upstream a digital complaint to the OFPRA, with acknowledgement of receipt and a response within 15 days, as well as a reasoned emergency procedure (marriage, birth, family reunification, hiring).

Proposal 3

Reinforce resources and complete the digitalisation

Make permanent and increase the staffing of protection officers dedicated to civil status; generalise online filing and tracking with secure digital issuance (electronically signed, verifiable record); publish each quarter open indicators (backlog, average deadline, 9th-decile deadline).

Proposal 4

Guarantee the full enforceability of the certificate

Attach to art. L561-16 of the CESEDA a text recalling that the certificate of extension of processing and the receipt serve as proof of residence and of the right to work, and issue an inter-ministerial instruction enforceable against banks (via the ACPR), landlords, employers, CAF and France Travail, prohibiting them from requiring a final record when the certificate is produced.

Proposal 5

Recognise the probative value of provisional documents

Specify in the CESEDA and by circular (civil status officers, prefectures) that the provisional documents and the administrative certificate issued by the OFPRA pending the final record have sufficient probative value to initiate the procedures of civil life — so that waiting no longer paralyses the exercise of rights.

Proposal 6

Give OFPRA the means to clear the backlog

Make permanent and increase the number of protection officers dedicated to civil status, and fund a backlog-clearance plan (nearly 60,000 pending cases), to reach an enforceable target deadline.

Legal basis **L121-9 CESEDA** **R121-35** **L561-16** **CE 30 janv. 2025, 495916**

Article L121-9 of the CESEDA

The OFPRA is empowered to issue to refugees, beneficiaries of subsidiary protection and stateless persons the documents necessary for the acts of civil life, in particular the documents serving as civil status records. Its director general authenticates these records, which have the value of authentic instruments and make up for the absence of records issued in the country of origin. The text sets no establishment deadline.

Article R121-35 of the CESEDA

Specifies the conditions for the establishment and issuance of records by the Office and confirms their value as authentic instruments, the Office being able to rectify only purely material omissions and errors. Here again, no deadline enforceable against the OFPRA is provided for.

Article L561-16 of the CESEDA

Pending the final establishment of their civil status by the OFPRA, the protected person may claim the benefit of the rights opened by the Labour Code, the Social Security Code, the Social Action and Families Code and the Construction and Housing Code, on the basis of the family composition taken into account during the examination of the asylum application.

Conseil d'État, 2nd-7th joint chambers, 30 January 2025, Nos. 495916 and 495917

Seized by the GISTI and the ADDE, on the one hand, and by La Cimade, the GAS, JRS France and the LDH, on the other, of the implicit refusal to take measures to reduce the OFPRA's deadlines, the Conseil d'État dismissed the applications. It noted that the deadlines had begun to decrease from the last quarter of 2023, to be brought down to less than ten months, and that protected status, combined with the certificate of extension of processing and the rights opened by art. L561-16, made it possible to exercise most of the rights attached to the status.

[Article L121-9 du CESEDA – Légifrance](#)

[Article L561-16 du CESEDA – Légifrance](#)

[CE, 30 janvier 2025, n° 495916 \(délais d'état civil OFPRA\) – Légifrance](#)

[Conseil d'État – Décision n° 495916 du 30 janvier 2025](#)



Travelling outside France (tourism, work, family)

For a business trip, a tourist trip or a visit to relatives, a protected person cannot use the passport of their country of origin.



Travel plans (tourism, work, family)



Country-of-origin passport unusable



Application for a travel document (TIV / TVR) on ANEF





ACTUAL TIME
8 to 10 months
reported



TIME SET BY
LAW

Not set by law



Travel document
issued



Travel becomes
possible

THE SITUATION

The **travel document for refugees** (TVR), the **identity and travel document** (TIV) issued to beneficiaries of subsidiary protection, and the travel document for stateless persons are secure biometric documents that replace the national passport – which these persons cannot request from their country of origin. The application is exclusively digital, on the ANEF. Unlike the validity period and the fee, which are set by law, **no text sets a legal deadline for production or issuance**. In practice, prefectures recommend filing at least three months before departure and announce deadlines of around 30 to 60 days, without guarantee or priority processing; actual deadlines are sometimes much longer, with no organised emergency procedure.

663,241

persons under the protection of the OFPRA at the end of 2024 (refugees, stateless persons, subsidiary protection) – population concerned

—

legal deadline for production or issuance set for the travel document: no text frames it

3 months

minimum period merely recommended by prefectures for filing before travel, without any guarantee of compliance

THE PROBLEM

Without an enforceable deadline, the protected person has no guarantee as to the date on which they will actually be able to travel: visiting relatives in a third country, a business trip, a medical procedure, the death of a relative. **The absence of an emergency procedure makes it impossible to take account of compelling situations.** The recommendation to file « at least three months before » places on the person an uncertainty they cannot control, when, by definition, they cannot obtain a passport from their country of origin – depriving of effectiveness a right recognised by law.

OUR PROPOSALS

Proposal 1

Enter a regulatory issuance deadline in the CESEDA

Supplement the regulatory part of the CESEDA (around art. R561-8) with an enforceable maximum deadline for production and delivery of the document, set at **two months** from a complete application, aligned with the practice for the ordinary passport. Failing a decision, provide for a mandatory prefectural point of contact and an accelerated remedy.

Proposal 2

Create an emergency procedure for compelling reasons

Introduce an emergency channel with issuance within 5 to 10 business days in the event of a justified compelling reason (serious medical reason, death or illness of a relative, compelling family reason, dated professional obligation), with a list of supporting documents and a priority desk – on the model of the existing emergency procedure for the passport and the national identity card (CNI).

Proposal 3

Guarantee online tracking and published deadlines

Make mandatory, on the ANEF, step-by-step time-stamped tracking (filing, processing, production, making available), and the quarterly publication, by prefecture, of the actual average issuance deadlines – to make the administration accountable and allow the management of discrepancies.

Proposal 4

Attach effective guarantees to exceeding the deadline

In the event of an exceedance attributable to the administration, provide for a penalty payment as of right in urgent proceedings before the administrative judge and the possibility of issuing a provisional travel document allowing an already planned trip – like the provisional documents existing in residence matters.

Proposal 5

Reduce or abolish the fee for the most precarious

Amend section IV of Article 953 of the CGI to exempt from the stamp duty (€45 or €40) beneficiaries of protection who have no resources or who receive minimum social benefits, or introduce a reduced rate, so that the cost is not an additional obstacle to the exercise of a fundamental right.

Proposal 6

Resource the document-production service properly

Provide the travel-document service with staff and biometric equipment matched to demand, to bring production down to a few weeks.

Legal basis L561-9 (TVR) L561-10 (TIV) L561-12 L582-7
(apatride) CGI art. 953-IV R561-8

Article L561-9 of the CESEDA – travel document for refugees

A foreign national holding a valid residence permit who has been recognised as a refugee may be issued a « travel document for refugees », authorising them to travel outside France, except for compelling reasons of national security or public order, with the exception of the State or States in respect of which the fears of persecution have been recognised as well-founded. No production or issuance deadline is set.

Article L561-10 of the CESEDA – identity and travel document

The beneficiary of subsidiary protection may be issued an « identity and travel document », except for compelling reasons of national security or public order. It does not allow travel to the State or States where the person concerned would be exposed to the serious harm referred to in art. L512-1. No production or issuance deadline is set.

Articles L561-11, L561-12 and L561-13 of the CESEDA

The minor child of the protected person may be issued the travel document of art. L561-10 (L561-11). The validity period of the documents issued pursuant to art. L561-9 to L561-11 is set in section IV of Article 953 of the CGI (L561-12); no processing deadline is provided for therein. The document may be withdrawn or its renewal refused for compelling reasons of national security or public order (L561-13).

Article L582-7 of the CESEDA – travel document for stateless persons

A foreign national recognised as stateless and holding a valid residence permit may be issued a « travel document for stateless persons », except for compelling reasons of national security or public order, its validity period likewise being referred to section IV of Article 953 of the CGI. No production or issuance deadline is set.

Article 953, IV, of the General Tax Code

Sets the validity period and the fee: document issued to refugees, stateless persons or beneficiaries of subsidiary protection holding a resident card – valid for 5 years, €45 fee; document issued to stateless persons or beneficiaries of subsidiary protection holding a 4-year multi-year card – valid for 4 years, €40 fee; identity and travel document issued to a foreign national who is not a beneficiary of protection (e.g. a child) – valid for 1 year, €15 fee. No provision imposes an issuance deadline.

Article R561-8 of the CESEDA

Specifies the documents to be presented (residence permit, two regulation photographs, proof of address or declaration of domiciliation). The text sets the conditions of filing but no processing or document-delivery deadline.

[CESEDA – Section 4 : Documents de voyage \(L561-9 à L561-13\) – Légifrance](#)

[CESEDA – Apatridie, dont L582-7 – Légifrance](#)

[CGI, article 953 \(validité et taxe des titres de voyage\) – Légifrance](#)

[Réfugié : titre de séjour, document de voyage et accompagnement – service-public.gouv.fr](#)

[Demander un titre de voyage \(dépôt ANEF, recommandation 3 mois\) – Préfecture de la Gironde](#)

[Dématérialisation via l'ANEF : des ruptures de droits graves et massives – Défenseur des droits](#)



Obtaining a residence permit after protection

As soon as OFPRA or the CNDA grants protection, the prefecture must issue the residence permit. In the meantime, the allowance often stops.



Favourable decision
(OFPRA / CNDA)



The allowance (ADA)
stops – risk of a
period without
resources



ACTUAL TIME
often > 3 months
(sometimes 7
months or more)



**TIME SET BY
LAW**
3 months



Residence permit or
resident card issued

THE SITUATION

Once protection is granted by the OFPRA or the CNDA, the prefect has a regulatory deadline of **three months** to issue the residence permit. Refugees are entitled to a ten-year resident card; beneficiaries of subsidiary protection first receive a multi-year card of up to four years, then, after four years of lawful residence, a ten-year resident card. In practice, this deadline is very frequently exceeded, **with no penalty attached to it**. At renewal, processing via the digital platform ANEF generates interruptions of rights documented by the Defender of Rights, the Conseil d'État and associations.

3 months

Regulatory deadline for issuance after the OFPRA/CNDA decision (art. R. 424-1 and R. 424-7 CESEDA), without effective penalty

28%

Share of the 2023 complaints to the Defender of Rights falling under immigration law; more than 75% concern prefectures

6 to 12 months

Deadlines set for the State by the Conseil d'État (5 May 2026, No. 502860) to correct the malfunctions of the ANEF

THE PROBLEM

The three-month deadline is devoid of binding force: exceeding it exposes the administration to no penalty. At renewal, going through the ANEF, which has become the standard channel, causes interruptions of rights – permit expired without a certificate of extension, loss of employment, housing and benefits.

The right to file the application and to a certificate covering all rights (residence, work, benefits) is not effectively guaranteed.

OUR PROPOSALS

Proposal 1

Make the three-month deadline enforceable and penalised

Supplement Articles R. 424-1 and R. 424-7 of the CESEDA: failing issuance within three months, a certificate serving as a residence permit (conferring the right to work and to benefits) is issued as of right, with an automatic penalty payment paid to the person concerned in the event of an unjustified exceedance (on the model of the urgent useful-measures application, art. L. 521-3 CJA).

Proposal 2

Automatically issue a certificate covering all rights

Amend Article R. 431-15-1 of the CESEDA so that the certificate of extension of processing is generated automatically by the ANEF as soon as the complete file is submitted, expressly mentions the right to residence, to work and to benefits, and is renewed automatically – in line with the injunction of the Conseil d'État of 5 May 2026 (No. 502860).

Proposal 3

Automatically extend the validity of the permit during processing

Provide by decree that the permit of a protected person who has filed their renewal application within the deadlines remains valid until the express decision of the prefecture, without any submission-window condition or additional step – removing any gap between the expiry of the permit and the certificate.

Proposal 4

Guarantee the right to file and access to an appointment

Make the substitute solution operational (Decree No. 2023-191 of 22 March 2023): in-person reception within 30 days where using the ANEF is impossible, time-stamped traceability of attempts, facilitated access to the urgent useful-measures judge (in the wake of CE, 18 February 2022, No. 455740).

Proposal 5

Make the ANEF reliable and publish indicators

Implement the injunctions of the Conseil d'État (No. 502860): simultaneous filing on distinct grounds, correction of files, an end to refusals wrongly based on the absence of return of the previous permit. Publish for each prefecture the average deadline and the compliance rate with the three-month deadline, with a monitoring committee.

Proposal 6

Strengthen the prefectures' foreign-nationals services

Make permanent and expand the announced 500 extra staff: recruit established officers in prefecture 'séjour' services, with multi-year funding, to absorb the queues and meet the three-month deadline.

Legal basis R424-1 CESEDA R424-7 L424-1 / L424-13 R431-15-1 CE 452798 CE 502860

Article R424-1 of the CESEDA

The prefect issues the resident card (art. L. 424-1 or L. 424-3) within a deadline of three months from the decision recognising refugee status by the OFPRA or the CNDA. This deadline carries no penalty in the event of an exceedance.

Article R424-7 of the CESEDA

The prefect issues the multi-year residence card (art. L. 424-9 or L. 424-11) within a deadline of three months from the decision granting subsidiary protection. As for refugees, this deadline carries no penalty.

Articles L424-1, L424-4, L424-9, L424-13 of the CESEDA

The refugee receives a ten-year resident card (L. 424-1); L. 424-4 refers to decree the deadline for issuance (implemented by R. 424-1). The beneficiary of subsidiary protection receives a multi-year card with a maximum duration of four years (L. 424-9), then, after four years of lawful and uninterrupted residence, a ten-year resident card (L. 424-13), subject in particular to the absence of a threat to public order.

Articles R431-15-1 and R431-5 of the CESEDA

Filing on the online service gives rise to a filing certificate which does not establish the lawfulness of residence. Where the processing of a complete application extends beyond the expiry of the permit, the prefect makes available a certificate of extension of processing (API), valid for a maximum of three months and renewable (R. 431-15-1). The renewal application must be filed between the 120th and the 60th day preceding expiry (R. 431-5); outside this window, the maintenance of rights is not guaranteed.

CE, Section, 3 June 2022, No. 452798

The Conseil d'État annuls the decree making recourse to the ANEF mandatory insofar as it does not provide for a substitute solution: the administration must provide support and a non-digital channel where the user is unable to use the online service.

CE, 5 May 2026, No. 502860

The Conseil d'État orders the State to remedy the malfunctions of the ANEF: within six months, ensure the making available or renewal in good time of certificates of extension of processing and that the rights attached (in particular the right to work) appear on them, allow the completion of files, put an end to refusals wrongly based on the absence of

return of the previous permit; within twelve months, allow the simultaneous filing of applications on distinct grounds.

[CESEDA – Section 1 : Réfugiés \(R424-1 et s.\) – Légifrance](#)

[CESEDA – Section 2 : Protection subsidiaire \(R424-7 et s.\) – Légifrance](#)

[CESEDA – Titres de séjour des bénéficiaires d'une protection \(L424-1 et s.\) – Légifrance](#)

[Décret n° 2023-191 du 22 mars 2023 – Légifrance](#)

[CE, Section, 3 juin 2022, n° 452798 – Légifrance](#)

[Défenseur des droits – Rapport sur l'ANEF \(11 décembre 2024\)](#)

[Conseil d'État – Accès normal à la plateforme ANEF \(5 mai 2026, n° 502860\)](#)



Becoming French: naturalisation

After several years, a protected person can apply for French nationality. The law sets a deadline... but its starting point can be pushed back indefinitely.



Submission of the
complete file on ANEF



Acknowledgement of
completeness – it
(theoretically) starts
the clock





ACTUAL TIME
3 to 4 years
(often)

 TIME SET BY
LAW
18 months



Decision – silence
from the
administration counts
as a refusal



Naturalisation

THE SITUATION

Article 21-25-1 of the Code civil requires the public authority to respond to a naturalisation application within a deadline of **eighteen months** (twelve months for a foreign national habitually residing in France for at least ten years), which may be extended once by three months by a reasoned decision. But this deadline runs only from the submission of all the documents of a complete file, « against which a receipt is issued immediately ». Yet Article 37-1 of Decree No. 93-1362 provides that this receipt is issued « upon submission of the documents », **without attaching to this obligation any specified deadline or any penalty**. In practice, the issuance of the receipt is delayed, or even omitted – which the Defender of Rights (Défenseur des droits) described as a failure of the public

service (decision No. 2024-025 of 19 February 2024). In 2024, 103,661 people acquired French nationality, of whom 48,494 by naturalisation.

18 months

Maximum legal response deadline (12 months if 10 years of residence) — art. 21-25-1 C. civ.

3 to 4 years

Actual duration frequently observed, the starting point of the deadline being delayed (Défenseur des droits, 2022)

48,494

Naturalisations in 2024, out of 103,661 acquisitions of nationality (+6.6% in one year)

THE PROBLEM

The legal deadline is almost always circumvented by a simple mechanism: as long as the acknowledgement of completeness has not been issued, the eighteen-month clock does not start. The applicant remains in a wait with no legal end. When the deadline finally expires, the administration's silence amounts to an **implicit refusal** — and not acceptance: the State's inaction is turned against the user. The only real remedy — petitioning the minister (RAPO, mandatory prior administrative appeal) then the Administrative Court of Nantes to compel a ruling — adds several months, even years, at the cost of a lawyer.

OUR PROPOSALS

Proposal 1

Start the deadline from the complete submission on the ANEF

Amend Article 21-25-1 of the Code civil so that the 18-month deadline (12 months) runs from the online submission of a complete file, the time-stamped acknowledgement of registration serving as the acknowledgement of completeness. Failing that, frame the issuance of the receipt with a short, enforceable deadline (for example 30 days) in Article 37-1 of Decree No. 93-1362.

Proposal 2

Make exceeding the deadline genuinely penalised

Beyond the unmet deadline, allow petitioning the urgent-applications judge (juge des référés) for an order to rule, accompanied by a penalty payment (for example €100 per day of delay), at the State's expense. Examine easing the conditions for admissibility of the appeal in the event of prolonged failure to act.

Proposal 3

Require an express and reasoned decision

Frame the implicit refusal: any complete application should receive an express and reasoned decision within the legal deadline. An application left without a notified decision would be deemed admissible, without prejudice to the review of the substantive conditions – removing the perverse effect of silence amounting to rejection.

Proposal 4

Create an accelerated procedure for deadline disputes alone

Establish before the Administrative Court of Nantes a specific and accelerated procedure (single judge, within a few months) limited to litigation over the exceeding of deadlines and the non-issuance of the receipt, distinct from litigation on the merits.

Proposal 5

Make the deadline transparent and tracked online

Display in the ANEF account the date of completeness, the applicable legal deadline, a countdown of the time remaining and the processing stage; publish each quarter the actual deadlines and the backlog of the SDANF, and reinforce staffing in proportion to submissions.

Proposal 6

Give the SDANF the means to meet the deadline

A deadline only matters if the administration can meet it. Adopt a multi-year recruitment plan for caseworkers at the sub-directorate for access to French nationality (SDANF), funded by a dedicated budget sized to the actual caseload – to clear the backlog, not just make the deadline enforceable.

Article 21-25-1 of the Code civil

« The public authority's response to an application for the acquisition of French nationality by naturalisation must occur at the latest eighteen months from the submission of all the documents necessary to constitute a complete file, against which a receipt is issued immediately. » This deadline is reduced to twelve months for a foreign national who can prove habitual residence in France for at least ten years, and may be extended once, by a reasoned decision, by three months. The starting point is the submission of the documents (acknowledgement of completeness), and not the date of filing.

Article 37-1 of Decree No. 93-1362 of 30 December 1993

In its version in force (Decree No. 2024-108 of 14 February 2024, applicable to applications filed from 1 January 2026), it provides: « Upon submission of the documents provided for above, the authority with which the application was filed issues the receipt provided for in Article 21-25-1 of the Code civil. » No provision, however, sets a specified, enforceable maximum deadline for this issuance, which makes it possible to delay in practice the starting point of the legal processing deadline.

Silence amounting to rejection – art. L. 231-4 of the CRPA

By way of derogation from the principle « silence amounts to acceptance » (art. L. 231-1 of the Code of relations between the public and the administration), silence kept on an application for naturalisation by decree amounts to an implicit decision of rejection. Likewise, silence kept for four months by the minister on the mandatory prior administrative appeal (RAPO) amounts to rejection.

Jurisdiction and avenues of appeal

An unfavourable decision must first be challenged by a RAPO before the minister in charge of naturalisations (deadline: 2 months); its rejection may then be challenged before the Administrative Court of Nantes, which alone has nationwide jurisdiction for disputes relating to the sub-directorate for access to French nationality (SDANF), within a deadline of 2 months. The judge may compel a ruling, where appropriate subject to a penalty payment.

[Article 21-25-1 du Code civil – Légifrance](#)

[Article 37-1 du décret n° 93-1362 – Légifrance](#)

[Décision du Défenseur des droits n° 2024-025 du 19 février 2024](#)

[Naturalisation par décret : délais et recours — service-public.gouv.fr](#)

[Intégration et accès à la nationalité — chiffres 2024 \(ministère de l'Intérieur\)](#)

[Rapport du Défenseur des droits, « Devenir français par naturalisation » \(2022\)](#)



Bringing in and enabling the movement of one's children: family reunification and travel document (DCEM)

A person granted refugee status or subsidiary protection has the right to bring in family members who remained abroad (family reunification), without any condition as to resources, housing or length of residence. Once the family is in France, a foreign minor child needs a travel document (DCEM) to travel outside France and return without a visa. On paper, these rights are clear. In practice, everything often gets stuck at the same point: civil status records. Consulates and prefectures demand recent birth certificates (sometimes "less than 3 months old") that the protected person cannot, by definition, request from the authorities of the country they fled. They then depend on the reconstitution of their civil status by OFPRA, whose actual processing times run into months, with no statutory deadline enforceable against the administration.



Protection granted
(OFPRA/CNDA status)



Application for family
reunification (visa at
the consulate) or for a
DCEM (prefecture,
online via ANEF)



OFPRA reconstitutes
the civil status and
certifies the family
composition



Obstacle: a "recent"
birth certificate
required, impossible
to obtain from the
country of origin





ACTUAL TIME

Family reunification: visa often issued within 3 to 8 months, extended when civil status is not yet established (OFPRA reconstitution ~6 to 12 months).
DCEM: 2 to 4 months observed at the prefecture.



TIME SET BY LAW
DCEM: "Not established" (no enforceable issuance deadline).
Reunification: no deadline imposed by the CESEDA.



Document issued /
family reunited

THE SITUATION

The law is generous but access is choked by an administrative bottleneck: civil status records. Family reunification for refugees depends neither on resources nor on housing (CESEDA art. L561-2), and the DCEM is issued to the child as of right. But consulates, town halls and prefectures demand recent civil status documents that a protected person cannot obtain from their country of origin without putting themselves in danger or undermining the very meaning of their

protection. They therefore depend entirely on the reconstitution of their civil status by OFPRA, whose processing times have doubled in five years (177 days in 2019, 240 days in 2021), reaching up to a year locally. Meanwhile, no statutory deadline is enforceable: the administration's silence triggers no effective sanction, and families remain separated for months on end.

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Enforceable statutory deadline for issuing the DCEM

~6 to 12 months

Actual reconstitution of civil status by OFPRA

2 months

Period after which silence amounts to a refusal (DCEM)

THE PROBLEM

The requirement for a birth certificate "less than 3 months old" is in practice impossible to satisfy for a protected person: they cannot turn to the authorities of the country they fled, and their French civil status depends on an OFPRA reconstitution with long and unregulated processing times. The result is a circular deadlock: the prefecture or consulate waits for a document that only OFPRA can produce, OFPRA takes several months, and no enforceable statutory deadline makes it possible to break the impasse. Children remain separated from a parent, or can neither travel nor visit family for lack of a DCEM.

OUR PROPOSALS

Proposal 1

Prohibit requiring "recent" documents from protected persons

Issue a national instruction recalling that documents drawn up by OFPRA have the value of authentic instruments and that no recency ("less than 3 months") may be required of a protected person.

Proposal 2

Establish an enforceable deadline for OFPRA reconstitution

Set a maximum regulatory processing time for civil status records, together with a provisional attestation enforceable against prefectures and consulates in the interim.

Proposal 3

Strengthen the resources of OFPRA's civil status division

Increase the staff and budget dedicated to clearing the backlog and bringing processing times below 3 months, given the sharp rise in the number of protected persons.

Proposal 4

Recognise the provisional attestation as a sufficient document

Allow, as of right, a reunification visa or DCEM application to be processed on the basis of the provisional attestation of family composition, without waiting for the final document.

Proposal 5

Clear information and support

Make available, on service-public.gouv.fr and in prefectures, a single notice explaining the sequence OFPRA → consulate → prefecture and the avenues of appeal.

Proposal 6

Facilitate and clarify appeals

Systematically recall, in the event of a visa refusal, the obligation to refer the matter to the Commission for Appeals against Visa Refusals (CRRV) within 30 days before the Nantes administrative court.

Legal basis [CESEDA art. L561-2](#) [CESEDA art. R561-1](#) [CESEDA art. R561-3](#) [CESEDA art. D414-1](#) [CESEDA art. D414-4](#)

CESEDA, art. L561-2

A refugee or beneficiary of subsidiary protection may be joined by their spouse/partner and their children, without any condition as to length of residence, resources or housing (except where there is a threat to public order).

CESEDA, art. R561-1 à R561-3

The visa application for family members is filed with the consular authority, which requests from OFPRA a certification of the family composition and the refugee's civil status.

CESEDA, art. D414-1 à D414-4

The travel document for foreign minors (DCEM) is issued by the prefect, at the request of the person exercising parental authority, for a maximum period of 5 years.

CESEDA, art. L121-13 / L561-2

Civil status documents drawn up by OFPRA for protected persons have the value of authentic instruments.

[Légifrance – CESEDA, family reunification \(art. L561-2 to L561-5\)](#)

[Légifrance – CESEDA, travel documents for foreign minors \(art. D414-1 to D414-4\)](#)

[OFPRA – Reconstitution of civil status](#)

[Sénat – Timelines for reconstituting and issuing civil-status documents \(family reunification\)](#)



Opening a bank account: the right to a basic bank account

Having a deposit account is essential to receive the allowance, get a salary, pay rent or take out a subscription. Yet, for lack of a stable employment contract, proof of stable residence or a banking history in France, many protected persons (including beneficiaries of temporary protection from Ukraine) are refused the opening of an account by banks. French law provides a response to this situation: the "right to an account". Any person residing in France who is refused an account can refer the matter to the Banque de France, which then designates by default an institution required to open the account, free of charge, with basic banking services. This pathway describes the procedure, its theoretical timeframes and the gaps observed on the ground.



Need for a deposit account



Refusal or restriction by the bank (no permanent contract / no residence)



Referral to the Banque de France under the right to an account





Designation of an institution by default



ACTUAL TIME

Variable: the designation is often quick, but the actual account opening sees frequent delays – requests for additional documents, postponed appointments. Waiting times of several weeks are regularly reported.



TIME SET BY LAW
1 business day for the designation, then 3 business days for the account to be opened by the designated bank (from receipt of the documents)



Account opened with free basic banking services

THE SITUATION

The law is clear and protective: once the Banque de France has been referred to, opening the account is no longer a favour but an obligation for the designated bank, within short timeframes (1 business day for the designation, 3 business days for the opening). On paper, no person residing in France should be left without an account.

1 day

business day for the designation of a bank by the Banque de France

3 days

business days for the account to be opened by the designated bank

12

free basic banking services guaranteed

THE PROBLEM

In practice, the pathway remains strewn with obstacles. Many people are unaware that the right to an account even exists; branches sometimes refer them to the procedure without explaining it. At the stage of the actual opening, one observes repeated requests for supporting documents (residence, identity), postponed appointments and accounts opened to the bare minimum, sometimes closed shortly afterwards. Basic banking services, without an overdraft or a conventional chequebook, do not always make it possible to lead a normal economic life (a landlord or an employer may be reluctant). The language barrier and administrative complexity widen the gap between the statutory 3-business-day deadline and the time actually experienced.

OUR PROPOSALS

Proposal 1

Systematic information on the right to an account

Provide, upon any refusal to open an account, a written multilingual notice explaining the referral to the Banque de France, and establish it as a reflex in branches.

Proposal 2

Dedicated support for protected persons

Mobilise social workers (already authorised to refer matters to the Banque de France) and associations to assemble the files and track the timeframes through to the actual opening.

Proposal 3

Enforce the 3-business-day deadline

Set up monitoring of delays and a simple reporting channel (Banque de France, ACPR, Defender of Rights) when the designated bank exceeds the statutory deadline.

Proposal 4

Clarify the documents that may be required

Circulate a standard list of accepted supporting documents (residence permit / temporary protection, proof of domiciliation) to prevent abusive requests for documents.

Proposal 5

Strengthen reception capacity

Recruit and train multilingual staff and mediators at the Banque de France and in support networks, and fund domiciliation structures, to absorb the flows and reduce actual timeframes.

Proposal 6

Broaden the usefulness of basic services

Encourage banks to offer, beyond the minimal services, payment solutions that are genuinely usable for housing and employment.

Legal basis **CMF art. L312-1** **CMF art. D312-5** **Charte d'accessibilité bancaire**

CMF art. L312-1, I

Any natural or legal person residing in France has the right to open a deposit account at the credit institution of their choice.

CMF art. L312-1, II

In the event of a refusal, the person may refer the matter to the Banque de France, which designates a credit institution within one business day from receipt of the required documents.

CMF art. L312-1, III

The designated institution is required to open the account within three business days from receipt of all the documents.

CMF art. D312-5

The designated institution provides the basic banking services free of charge (the twelve services laid down by decree).

[Banque de France – Exercising your right to an account](#)

[Légifrance – Monetary and Financial Code, article L312-1](#)

[economie.gouv.fr – The right-to-account procedure \(DAC\)](#)

[ABE Infoservice – Right to an account](#)



Finding housing: social housing and leaving emergency accommodation

Once granted protection, many refugees live in emergency accommodation or temporary housing. To access durable housing, the main route is the social housing application, registered under a "single registration number". But supply falls far short of demand: the wait is often measured in months, even years, while the place in accommodation can itself be called into question. This pathway describes the steps, the actual timeframes observed and the rights that protect the person during the wait, in particular the enforceable right to housing (DALO).



Need for housing /
end of emergency
accommodation



Social housing
application (single
registration number)



Registration
certificate (within the
month)





ACTUAL TIME
Several months to
several years
depending on the
area and the family
composition



**TIME SET BY
LAW**
"Abnormally
long
timeframe"
set by
prefectoral
order, varying
by
department
(e.g. 24
months, 36
months)



Risk of having to leave
the accommodation
before being
rehoused



Housing offer (or
DALO appeal)

THE SITUATION

The social housing application rests on a clear and enforceable framework: registration, single registration number, a certificate within the month, and a

right of appeal (DALO) if the wait exceeds the "abnormally long timeframe". On paper, being kept in emergency accommodation is guaranteed as long as no suitable solution is offered.

1 month

statutory deadline to receive the certificate with the single registration number (CCH art. L441-2-1)

3 months

deadline to rehouse following a favourable DALO decision (6 months in overseas territories and large urban areas)

—

no guaranteed national deadline for the allocation of social housing

THE PROBLEM

In practice, the gap between the supply of and demand for social housing makes the wait very long, with no universal statutory cap. The "abnormally long timeframe" varies from one department to another and opens only an avenue of appeal, not immediate housing. Above all, the strain on accommodation places leads to terminations of care while the person has not been rehoused: the principle of continuity of accommodation (CASF art. L345-2-3) is weakened for lack of places, exposing people to being effectively returned to the street.

OUR PROPOSALS

Proposal 1

Secure the continued stay in accommodation

Effectively guarantee the principle of continuity (CASF art. L345-2-3): no termination of care without a suitable solution being offered, and no return to the street.

Proposal 2

Information as soon as protection is granted

Support each protected person in filing the social housing application and obtaining their single registration number without delay, in a language they understand.

Proposal 3

Raise awareness of DALO

Systematically inform people about the amicable appeal before the mediation commission as soon as the abnormally long timeframe is reached, and about the contentious appeal.

Proposal 4

Harmonise the "abnormally long timeframes"

Reduce the disparities between departments and clearly publish the prefectoral order applicable to each area.

Proposal 5

Strengthen resources: supply and support

Increase the stock of housing that can be mobilised (prefectoral quota, Action Logement) and fund social workers and associations supporting people into and within housing.

Proposal 6

Link accommodation and rehousing

Smooth the transition from accommodation to housing (rental intermediation, sliding lease) to avoid breaks in people's pathways.

Legal basis CCH art. L441-2-1 CCH art. L300-1 CCH art. L441-2-3
Loi n° 2007-290 du 5 mars 2007 CASF art. L345-2-3 CASF art. L345-2-2

CCH art. L441-2-1

Every social housing application is registered and gives rise to a single national registration number; a certificate is issued within the month; no allocation without registration and a single registration number.

CCH art. L300-1 (loi n° 2007-290 du 5 mars 2007)

The right to decent and independent housing is guaranteed by the State to any person residing lawfully who is unable to access or remain in such housing by their own means (DALO).

CCH art. L441-2-3

The mediation commission may be referred to without delay by an applicant who has not received a suitable offer at the end of the abnormally long timeframe set by the prefect; the prefect must then rehouse the beneficiary designated as a priority.

CASF art. L345-2-3

Any person taken in under emergency accommodation must be able to remain there, as long as they wish, until they are directed towards a suitable solution (principle of continuity).

[Légifrance – CCH art. L441-2-1 \(single registration number\)](#)

[Légifrance – Law No. 2007-290 of 5 March 2007 \(DALO\)](#)

[ANIL – Enforceable right to housing \(DALO\): conditions and timelines](#)

[Légifrance – CASF art. L345-2-2 \(unconditional shelter\)](#)



Importing and registering your vehicle: from foreign plates to the French registration certificate

A person who arrives in France with their car, or who buys one abroad, must have it registered in France. The pathway involves the tax authorities (tax clearance certificate), sometimes technical type-approval (DREAL), then the online registration certificate application (ANTS). In practice, it is a succession of independent counters, each with its own timeframes — with no guaranteed overall schedule. Meanwhile, the car still drives on foreign plates, which attracts police checks.



Vehicle registered
abroad



Tax clearance
certificate at the tax
office (SIE)



DREAL type-approval /
conformity if needed
(RTI or COC)





Registration
application on the
ANTS



ACTUAL TIME

Tax clearance
certificate: 1 to 2
weeks

DREAL RTI (non-
EU): several weeks
to several months

ANTS registration
certificate: 1 to 5
weeks after a
complete file

Frequent total:
several months



**TIME SET BY
LAW**

Application to
be made
within the
month
following
acquisition
(C. route art.
R322-2). No
enforceable
overall
completion
deadline for
the entire
import
pathway: "Not
established"





French registration
certificate issued and
FR plates fitted

THE SITUATION

The pathway works when each document arrives: tax clearance certificate from the tax authorities, certificate of conformity (COC) or individual approval (RTI) from the DREAL, then the registration certificate from the ANTS. The law does set a one-month deadline to make the application after acquisition, but no authority is bound by an overall deadline to complete the whole process. The applicant depends on three separate administrations that do not coordinate.

1 month

statutory deadline to file the application after acquisition (C. route R322-2)

—

no overall statutory deadline for the full completion of the import pathway

€135

fixed fine incurred for driving without French registration within the time limits

THE PROBLEM

During this fragmented pathway, the vehicle remains on foreign plates and continues to be checked by the police and gendarmerie, who specifically target these plates (suspicion of failure to register, to insure or to pass the roadworthiness test). The applicant, although acting in good faith and already engaged in their procedures, is exposed to a fixed fine of €135 and to possible immobilisation – without any overall statutory deadline protecting them as long as the counters have not responded. The provisional "WW" certificate (valid for 4 months) exists to fill this gap, but it is little known and is only issued once the ANTS file has already been submitted.

OUR PROPOSALS

Proposal 1

Single import counter

Make the ANTS a single entry point that triggers, in sequence, the tax clearance certificate and, if needed, the referral to the DREAL, rather than three separate procedures to initiate yourself.

Proposal 2

Protection during processing

Recognise and roll out a proof of procedure in progress (such as a receipt or an automatic WW) that suspends sanctions as long as the administrations have not responded within a reasonable timeframe.

Proposal 3

Enforceable completion deadline

Establish a target overall completion deadline (clearance + type-approval + registration certificate) with a commitment from the administration, filling the current "Not established" gap.

Proposal 4

Targeted information for newcomers

Circulate a clear notice (FR + the languages of the main groups, including Ukrainian) on the order of the steps, the tax clearance certificate that is free for the occasion, and the provisional WW certificate.

Proposal 5

Guidance for law enforcement

Issue an instruction so that checks take account of proof of a procedure in progress and favour a reminder of the rules rather than an immediate fine for someone acting in good faith.

Proposal 6

DREAL resources for RTIs

Strengthen the staff and budgets of the DREAL vehicle units, the main bottleneck for non-EU vehicles requiring individual approval.

Legal basis C. route art. R322-1 C. route art. R322-2 C. route art. R321-15 CGI quitus fiscal RTI / DREAL

Code de la route, art. R322-1

Every motor vehicle must be fitted with a registration certificate (carte grise) in order to drive on roads open to public traffic.

Code de la route, art. R322-2

The registration certificate in the new owner's name must be applied for within the month following acquisition; provisional circulation is possible under cover of a provisional registration certificate.

Code général des impôts (quitus fiscal)

The registration of a vehicle acquired in the EU is subject to the production of a tax certificate (clearance) attesting to compliance with VAT requirements, issued by the tax office.

Code de la route, art. R321-15 (réception)

Before registration, a vehicle without a valid EU type-approval must undergo an approval (in particular an individual approval) with the DREAL.

impots.gouv.fr – Obtaining a tax clearance (quitus fiscal) – individuals

impots.gouv.fr – Registering a vehicle and requesting a tax clearance (EU)

[Légifrance](#) – Highway Code, art. R322-2

[DRIEAT Île-de-France](#) – Vehicle type-approval FAQ (RTI / DREAL)

— ACTUAL VS LEGAL

The gap between the wait and the law

For each procedure: the time actually observed, and the time the law requires (or not) of the administration.

Reconstituting civil status (OFPRA)

ACTUAL TIME

≈ 9 months (up to 1.5 years)

TIME SET BY LAW

Not set

Travel document

ACTUAL TIME

8 to 10 months

TIME SET BY LAW

Not set

Residence permit

ACTUAL TIME

often > 3 months

TIME SET BY LAW

3 months

Naturalisation

ACTUAL TIME

3 to 4 years

TIME SET BY LAW

18 months (12 if 10 years)

— WHAT WE PROPOSE

Five simple principles

The same thread runs through every journey. Here is what this website stands for.



An enforceable deadline

A clear deadline for each step, with a definite starting point that cannot be pushed back by the administration.



An effective penalty

An overrun that has real consequences: a penalty payment, a certificate, or a permit issued automatically by right.



Continuity of rights

No gap between two permits or during processing: residence, work, resources and benefits preserved.

IV

Transparency

A deadline counter, step-by-step online tracking, actual processing times published by prefecture.

V

Reliable digitalisation

A platform (ANEF) that works, backed by in-person assistance for those who cannot use it.

VI

Resources to match

A deadline is only achievable if the administration has the means. Invest in permanent recruitment and a multi-year budget, sized to the real volume of applications – not just create obligations.

— LEGAL FRAMEWORK

What these processes are based on

The deadlines and obligations presented are based on the following texts. The actual processing times come from official sources and field feedback.

What these processes are based on

Reconstituting civil status (OFPRA)

CESEDA art. L121-9

R121-35

L561-16

CE 30 janv. 2025, n° 495916 et 495917

Titre de voyage

CESEDA art. L561-9 à L561-13

L582-7 (apatride)

CGI art. 953-IV

R561-8

Titre de séjour

CESEDA art. R424-1, R424-7

L424-1 à L424-13

R431-15-1, R431-5

CE 3 juin 2022 n° 452798 ; CE 5 mai 2026 n° 502860

Naturalisation

Code civil art. 21-25-1

décret n° 93-1362 art. 37-1

CRPA art. L. 231-4

Tribunal administratif de Nantes (SDANF)

[Légifrance — Code civil, CESEDA, CGI](#)

[Conseil d'État — decisions and press releases](#)

[Défenseur des droits — reports on ANEF and naturalisation](#)

[OFPRA — asylum data and 2024-2025 review](#)

[service-public.gouv.fr — practical information sheets](#)

[UNHCR — global trends on refugees](#)

**To understand is already to
act.**

This process and these timelines concern hundreds of thousands of people. Share this page, talk about it, and support the simple idea that runs through it: clear, enforceable deadlines, and rights without interruption.



A FINAL WORD

This is not a demand.

This website demands nothing. It respectfully suggests ways to make procedures smoother – the very procedures the administration itself is seeking to improve.

All those on whose behalf these proposals are made – and whom these journeys directly concern – wish first of all to express their deep gratitude to the French Republic. By opening its doors to those who had to flee war and persecution, France has become, for many of us, a new home. We do not forget this welcome, nor the women and men – prefecture and OFPRA staff, associations, volunteers – who make it possible every day.

If we speak of waiting times, it is not to complain but to contribute: clearer and faster procedures benefit everyone – protected persons, the administration, and the French society that welcomed us. It is in this spirit of gratitude and cooperation that these proposals are offered.

— Thank you.

Deadlines & Rights

An information and awareness-raising document. It does not constitute individualised legal advice. For a personal procedure, contact a specialised association (La Cimade, France terre d'asile, GISTI, Forum réfugiés) or a lawyer specialising in immigration law. Figures and texts verified in June 2026 against public sources; the actual processing times are indicative and change over time.

Updated · June 2026

Sources · OFPRA · UNHCR

· Conseil d'État

· Défenseur des droits

· Légifrance · service-public.gouv.fr